

Udayveer Singh v. State of U.P. and 3 Others

Allahabad High Court · Division Bench · 18 June 2018 · 2018 SCC OnLine All 2014 · Writ - C No. 21501 of 2018 · **Writ petition disposed of (without deciding merits) directing the petitioner to deposit Rs. 50,000 within three weeks, whereupon the Sub Divisional Officer is to fix easy instalments under Clause 6.14 of the Code**

HEADNOTE

A consumer in financial distress who is willing to clear outstanding electricity dues may be extended the facility of easy instalments; Clause 6.15 of the U.P. Electricity Supply Code, 2005 obliges the licensee to extend such a facility to consumers in financial distress, and Clause 6.14 provides the mechanism for fixing the instalments. The petitioner, running a flour-mill (8.5 HP), challenged a recovery citation and sought instalments after adjusting amounts already deposited. Without adjudicating the merits, the Court disposed of the petition directing a deposit of Rs. 50,000 within three weeks, on which the Sub Divisional Officer would proceed strictly in accordance with law under Clause 6.14 and fix easy instalments.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Easy-installment facility for a consumer in financial distress

QUESTION

May a consumer in financial distress who is willing to clear the dues be relegated to the instalment mechanism of the Code rather than a merits adjudication of the recovery?

HOLDING

Yes. Clause 6.15 requires the licensee to extend the facility of easy instalments to consumers in financial distress, and Clause 6.14 supplies the mechanism. Without advertent to the merits, the Court directed the petitioner to deposit Rs. 50,000 within three weeks, on which the Sub Divisional Officer must proceed strictly in accordance with law under Clause 6.14 and fix easy instalments. ¶ 4-9

LIMITING FACTS

Floor-mill consumer (8.5 HP) willing to clear the outstanding amount; deposits already made but a receipt for part missing; recovery citation dated 7.5.2018 challenged; Court expressly did not adjudicate on merits.

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress A consumer in financial distress willing to clear the dues is entitled to easy instalments under Clause 6.15 r/w Clause 6.14, to be fixed by the competent authority. ¶ 4-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — THE VALIDITY OF THE RECOVERY CITATION AND THE ADJUSTMENT OF AMOUNTS ALREADY DEPOSITED

Court expressly did not adjudicate the matter on merits; left to the SDO to proceed in accordance with law under Clause 6.14. ¶ 7-9